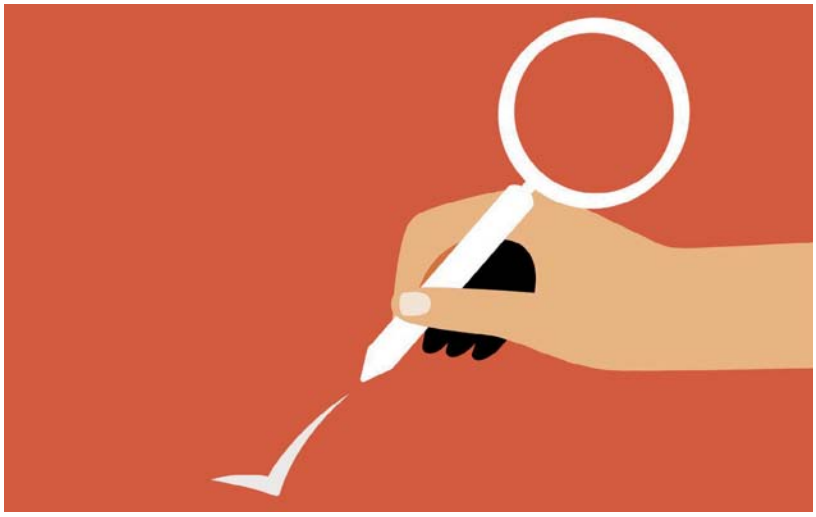


Illustration by SIDDHANT JUMDE

IT RULES

CHECK OR CURB?

By Kaushik Deka

On April 6, the Union government issued notifications regarding amendments to the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, related to online gaming and spread of false and misleading information regarding the government. The amended rules make it mandatory for intermediaries to not publish, share or host false or misleading information about the central government and makes the provision for a central body that can check and flag content related to the government. This has stirred a massive controversy. While the government said fact-checking is meant to combat misinformation, experts have raised concerns about censorship.

The Union ministry of electronics and information technology will notify the name of the government's fact check unit. Unlike what was proposed earlier, the Press Information Bureau (PIB) will not be assigned the job. No detail on the unit's structure and composition has been declared. "We have yet to take a decision on whether it will be a new organisation that has trust and credibility, or to take an old one and repurpose it in terms of a fact-checking mission," says Rajeev Chandrasekhar, the Union minister of state for electronics and technology.

Any content flagged by this proposed entity as "fake" or "misleading" will have to be taken down by the "intermediary" platform within three months. If a social media platform like Twitter or an internet service provider such as Airtel or any other intermediary fails to remove such content, they could lose the protections guaranteed by Section 79 of the IT Act, 2000, which absolves intermediaries of liability for content posted by users. "Intermediaries who choose to continue to have flagged content, and it is within their right to do so, will have to deal with persons aggrieved by it in a court of law," explains Chandrasekhar.

Fact-checking under the new rule would combat false information, says the Centre. Experts say it will grossly restrict free speech

The changes were first proposed in January but were placed on the back burner following widespread criticism. The Editors Guild of India had said that the "determination of fake news cannot be in the sole hands of the government and will result in censorship of the press". Following this, the government has released a modified version. The January proposal empowered PIB, government departments or any government-authorised agency to fact-check and flag any online content, including about the government. This is now trimmed down to only allow fact checks of government-related content by a dedicated unit.

These new rules also circumvent existing limits on the government's power. Under Section 69A of the IT Act, the government can only block content for reasons consistent with Article 19(2) of the Constitution, under which speech can be restricted for reasons including ensuring the security of India, maintaining public order, decency, morality and preventing defamation. In 2015, the Supreme Court in *Shreya Singhal v Union* ruled that removal of content must be limited to Section 69A. Now, the government can just ask for removal of content, claiming it to be misleading or false. A day after the amendments were released, the SC struck down a ban on a media channel, saying restrictions to free speech cannot be applied to criticism of government policy.

There is also no transparent process to scrutinise how content will be labelled false. The Guild highlighted how the words "in respect of any business of the Central Government" are likely to give the Centre a carte blanche to determine what is fake or not. "The government will use these provisions to control the online narrative in the name of checking misinformation, especially before the 2024 general elections," says Mishi Choudhary, a lawyer specialising in digital rights and privacy. The Centre has sought to dismiss the concerns. "We want to conduct fact checks in a credible way, and not just for the government but also for the intermediary who will depend on it," says Chandrasekhar. ■